

COMMITTEE ON COMMERCE
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2951
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 44, chapter 9, Arizona Revised Statutes, is
3 amended by adding article 27, to read:

4 ARTICLE 27. SUBSCRIPTION REGULATIONS

5 44-1383. Automatic renewal contracts: requirements:
6 definition

7 A. A PERSON THAT OFFERS TO A CONSUMER IN THIS STATE AN AUTOMATIC
8 RENEWAL CONTRACT:

9 1. SHALL ALLOW THE CONSUMER TO CANCEL THE CONSUMER'S SUBSCRIPTION
10 BY USING THE SAME METHOD THE CONSUMER USED TO ENROLL IN THE SUBSCRIPTION
11 AND MAY NOT ADD EXTRA REQUIREMENTS OR STEPS TO THE CANCELLATION PROCESS.

12 2. SHALL PROVIDE CLEAR, CONSPICUOUS DISCLOSURE OF A SUBSCRIPTION'S
13 TERMS, INCLUDING RENEWAL POLICIES AND CANCELLATION INSTRUCTIONS, AT THE
14 TIME THE CONSUMER ENROLLS IN A SUBSCRIPTION.

15 3. MAY MAKE A RETENTION OFFER OR INCENTIVE TO A CONSUMER ONLY AFTER
16 THE CONSUMER INDICATES AN INTENT TO CANCEL THE CONSUMER'S SUBSCRIPTION.
17 THE RETENTION OFFER OR INCENTIVE MAY NOT IMPEDE OR COMPLICATE THE
18 CANCELLATION PROCESS.

19 B. A PERSON THAT OFFERS TO A CONSUMER IN THIS STATE AN AUTOMATIC
20 RENEWAL CONTRACT, THIRTY-ONE DAYS BEFORE AN ANNUAL AUTOMATIC RENEWAL,
21 SHALL SEND TO EACH CONSUMER WHO HAS AN AUTOMATIC RENEWAL CONTRACT A
22 REMINDER OF THE AUTOMATIC RENEWAL FOR THE SUBSCRIPTION BY USING THE SAME
23 METHOD THE CONSUMER USED TO ENROLL IN THE SUBSCRIPTION IN ORDER TO PROVIDE
24 THE CONSUMER AN OPPORTUNITY TO OPT OUT OF THE AUTOMATIC RENEWAL CONTRACT.

25 C. FOR THE PURPOSES OF THIS SECTION, "AUTOMATIC RENEWAL CONTRACT"
26 MEANS A PLAN OR ARRANGEMENT IN WHICH A PAID SUBSCRIPTION OR PURCHASING
27 AGREEMENT FOR GOODS OR SERVICES IS AUTOMATICALLY RENEWED AT THE END OF A
28 DEFINITE TERM FOR A SUBSEQUENT TERM OR ON A CONTINUOUS OR RECURRING
29 BASIS."

30 Amend title to conform

And, as so amended, it do pass

JEFF WENINGER
CHAIRMAN